

Gunuveena Singh vs Capt. Pankaj Puneet Singh on 25 August, 1993

Equivalent citations: II(1993)DMC405

JUDGMENT

A.R. Tiwari, J.

1. This appeal has been presented under Section 28 of the Hindu Marriage Act, 1955 (for short, 'the Act') against the judgment and decree dt. 15th July, 1992 rendered by Additional Judge, Mhow to the Court of District Judge, Indore in Hindu Marriage Case No. 47/90, thereby dismissing the petition seeking dissolution of marriage by decree of divorce on the grounds of cruelty and desertion.

2. The factual matrix in brief is that the marriage between the parties was solemnized 14-4-87 according to Hindu rites. The respondent treated the appellant with cruelty. She was humiliated before servants and was threatened to be killed. The respondent also indicated suspicion against fidelity of the appellant and disowned the son born to her. The responder did not care to keep the appellant with him and thus deserted to her in Oct. 1988. These various acts caused reasonable apprehension in the mind of the petitioner that it will be harmful and injurious for her to live with the husband/respondent. She was tortured mentally also and on these twin grounds, the appellant presented the petition on 19-11-90 i.e. after expiry of two years from the date of desertion. She also claimed restoration of property retained by the respondent as particularised in the list annexed with the petition. The summons of the aforesaid petition was sent by Registered Post Acknowledgement Due also. The summons was treated to be served in terms of proviso to Order 5 Rule 19-A of the Code of Civil Procedure, as the acknowledgement was not received by the Court within 30 days from the issue of summons. On this ground the application dated 1-4-92 was accepted by the Trial Court and the order to proceed Ex-parte against the respondent was passed on 1-4-1992. The appellant and her father were examined on 1-5-1992 and on 11-6-1992 respectively. On evaluation of Ex parte evidence, the Trial Court, however, dismissed the petition. Aggrieved by the judgment and decree passed by the Trial Court, the appellant has preferred this appeal.

3. The point for determination is whether the judgment and decree passed by the Trial Court is sustainable in law.

4. Lett in the lurch, the wife, chagrined by lugubrious me, petitioned under Sections 13 (ia) and (ib) of the Hindu Marriage Act, 1955 for dissolution of marriage by decree of divorce complaining of matrimonial offences by the husband. The relevant provisions are extracted below :--

That the other party--

(ia) has after the solemnization of the marriage treated the petitioner with cruelty.

(ib) has deserted the petitioner for a continuous period of not less than two years immediately preceding the presentation of the petition.

(Explanation : In this sub-section, the expression "desertion"

means the desertion of the petitioner by the other party to the marriage without reasonable cause and without the consent or against the wish of such party and includes the wilful neglect of the petitioner by the other party to the marriage and its grammatical variations and cognate expressions shall be construed accordingly.)

5. As to the chronicle, the claim rested on the linchpin of the under noted matrix :--

(a) The marriage was solemnized on 14-4-87 at Chandigarh according to Hindu rites. The petitioner last resided with her husband at Mhow. The non-applicant treated the petitioner * with cruelty. Implorements by parents and relatives proved to be an exercises in futility. Apprehending risk to limb and life, the petitioner returned to parental home in Oct. 1988. The ornaments an articles given in dowry, as particularised in the annexure, are retained by the non-applicant.

(b) The Non-applicant has deserted the petitioner and is guilty of non chalange and wilful neglect.

(c) The Non-applicant, during his visit to the hospital at the time of delivery, voiced about escutcheon saying that male offspring belonged to "some one else."

6. The non-applicant chose to be absent and offered no resistance to the claim as put forward. Yet, on evaluation of Ex parte evidence, furnished by the appellant (PW 1) and her father Dharampal Singh (PW 2), the Trial Court negatived the grounds and dismissed the petition. The summons, in this appeal remained unserved and as a result of this and factum of Ex parte proceedings in the Trial Court, this Court, on prayer, ordered on 6-7-93 that service of summons on NA is dispensed with.

7. It is noticed from the order, impugned in this appeal, that the relief was declined primarily on the ground of deficiency or variance in the pleadings. This so-called infirmity has been removed in this Court via the amendment in the pleadings by this Court on 12-8-93. A notice of this application was also directed to be issued on 16-3-1993.

8. About five years have elapsed since separation in October, 1988, yet the husband has not cared to bring the neglected wife back and discharge his obligations as regards conjugal rights. It seems that the marriage for whatever reason, has broken down irretrievably.

9. The imputation against chastity and fidelity itself fouls the relationship and furnishes almost invincible cause of action on mental cruelty. Things, in some cases, do not seem to alter despite

obligation imposed by Article 51A of the Constitution of India, as fundamental duty, to "renounce practice derogatory to the dignity of women." What can a wife do when the husband persisted in exhibiting recalcitrant attitude and opted to be ruthlessly uncooperative ? Should the law stay petrified in such matters ? Must the cause perish in law on sheer technicalities or military-like insistence on pleadings ? Should the sworn testimony, despite non-challenge, be seen as acarpous ?

10. The Court, acting reasonably and judiciously, is obligated to scrutinise as to who has wronged and who is wronged. The erring husband sanctimoniously declined even to participate in the proceedings. Yet the Court deemed it just to say 'monosyllabic no' to the harassed wife. Endeavour towards reconciliation due to absence and coalescence was not possible. What should be the answer then ? Was Montaign right when he opined that "a good marriage would be between a blind wife and a deaf husband" ?

11. It might sound tautologous to define the term desertion. Yet enough light is shed by the explanation (supra). In modern society, wife theoretically called better half, has a right to receive reasonable comforts and peaceful company of her husband. She has a right to live with dignity, She cannot be made to suffer despicable accusation Extacito. Such attitude of the husband is palpably irremissible. The husband can have neither vote nor veto. The law must provide protective umbrella and free the petitioner from the boneful bond of marriage which gave only tears and torture.

12. It is seen that is 'animus deserendi' and there is no indication of 'animus revertendi' from the side of the nagging husband. In AIR 1990 S.C. 594; (Sanat Kumar Agarwal v. Smt. Nandini Agrawal) it is held as under:--

"It is well settled that the question of desertion is a matter of inference to be drawn from the facts and circumstances of each case and those facts have to be viewed as to the purpose which is revealed by those facts or by conduct and expression of intention, both interior and subsequent to the actual act of separation."

No effort was made by the husband to persuade the wife to join him in matrimonial home. It is inbred to behave that way once, the opinion stood polluted as above.

13. The imputation itself is enough to incinerate the legally existing but factually non-existing marriage. In 1965 MPLJ 549; (Umri Bai w/o Chittar v. Jhabbu) it is held that :--

"Where such suspicion not only lurks in the husband's mind against the fidelity of his wife, but he also gives expressions to it, is it not bound to cause a reasonable apprehension in her mind that it will be harmful or injurious for her to live with him ? The appellant's apprehension is that her life would be in danger, or her nose would be cut off, or she would be disfigured otherwise. "....." "Cruelty" within the meaning of Section 10 of the Act postulates a treatment of the petitioner with such cruelty as to cause a reasonable apprehension in the petitioner's mind that it will be harmful or injurious for the petitioner to live with the other party. But cruelty under that section is not necessarily physical cruelty. The clause is comprehensive enough

to apply to cases of mental cruelty, which may cause even more serious injury than physical harm and create in the mind of the injured spouse such apprehension as is contemplated in the section." And in 1981 MPLJ (I) 124; (Lalu v. Salitabai); it is ruled that wife is entitled to obtain decree of divorce on proof of ill-treatment and cruelty.

14. I have cautiously read the statements of PW 1 and PW 2. PW 1 deposed that her husband humiliated her in presence of servants and threatened to have her killed. He commanded her to ask her parents to sand property and pelf. Suspicion lurked in the mind against fidelity as was evident by observation in the hospital that son did not belong to him. He did not take her with him. PW-2 corroborated this and stated that his efforts to bring about amicable settlement failed. PW 1 did not appear again as directed to make proper statement about the return of property. There is no rebuttal as regards grounds of divorce. The aforesaid acts are sufficient to cause reasonable apprehension in the mind of the appellant that it will be harmful or injurious for her to live with the respondent. The conduct, subsequent to the actual act of separation is suggestive of dent, almost beyond repair, on matrimonial relations. The cause of dissensions is not in tenebrosity.

15. The above quoted material thus, cogently establishes the grounds as urged and convincingly justifies the dissolution of marriage by the decree of divorce. The evidence is held to be sufficient and satisfactory. I am, thus satisfied that the appellant is a person wronged and forced to recall what Thomas Hardy had observed long back about marriage as under :--

"Marriage means purchase of one month's pleasure at the cost of life's discomforts."

I, thus, deem it just to terminate life's discomforts, in the facts and circumstances of the case by dissolution of marriage.

16. As regards the direction about return of property, I do not find proper proof in that behalf. That part of the claim was, thus, rightly rejected.

17. But as regards the relief of divorce, I find this to be a preeminently fit case where such a prayer is not liable to be spurned and seems to be irrecusable. After all, married life is a joint adventure in which both the parties are required to "bear and forebear" and shun hostility, otherwise married life becomes a marred lyricism. The case on hand is devoid of such a surge of an urge. The parties seem to have reached the point of no return. In the fact of cruelty, apparent at least from unrebutted expression of accusation against the chastity, and desertion, evident from firm intention of avoiding and averting re-union, as reinforced by the absence even in judicial proceedings, the petition, presented under Section 13 of the Act, deserves to be accepted. Such a course is "D" accord" with current realities and "C' est-a-dire" it must receive judicial recognition.

18. Ex-consequenti, for the reasons stated above, differing with the conclusion of the Trial Court and reversing its judgment and decree, this Court allows this appeal in part. Accordingly the marriage solemnized between the appellant and respondent on 14-4-1987, is hereby dissolved by this decree of divorce in terms of Section 13 of the Act with effect from the date of this judgment. There shall, however, be no order as to costs.

19. The appeal is consequently allowed in part as indicated above. Let a decree be drawn up accordingly.

20. The appellant shall have liberty to initiate appropriate proceedings against the respondent as regards alimony and other consequential reliefs. I have not permitted my pen to pronounce upon such matters, because of Ex-parte proceedings.

21. The record of the Trial Court shall now be returned alongwith a copy of this judgment and decree.